

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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REGINA KITCHING, WILLIAM THOMPSON, and DERRICK
KITCHING,

Plaintiffs,

AMENDED COMPLAINT

-against-

06 CV 0364 (RJD) (CLP)

THE CITY OF NEW YORK, P.O. CHRISTOPHER WARD, LT.
THOMAS FITZGERALD, CAPT. IGNATIUS LABARBERA,
DET. JOSEPH KING, P.O. "JOHN" FRANCIS, P.O. STEVEN
BALSAMO, P.O. SEKOU BOURNE, P.O. MICHAEL
CUSUMANO, DET. MARIN DURKIN, and P.O. s "JOHN DOE"
#1-10, Individually and in their Official Capacities, (the name
"John Doe" being fictitious, as the true names are presently
unknown),

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs REGINA KITCHING, WILLIAM THOMPSON, and DERRICK KITCHING, by
their attorney, ROSE M. WEBER, complaining of the defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331 and 1343.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff REGINA KITCHING is an African-American female who is the wife of plaintiff William Thompson, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Plaintiff WILLIAM THOMPSON is an African-American male who is the husband of plaintiff Regina Kitching, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

8. Plaintiff DERRICK KITCHING is an African-American male who is the brother of plaintiff Regina Kitching, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

9. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

11. That at all times hereinafter mentioned, the individually named defendants P.O. CHRISTOPHER WARD, LT. THOMAS FITZGERALD, CAPT. IGNATIUS LABARBERA, DET. JOSEPH KING, P.O. "JOHN" FRANCIS, P.O. STEVEN BALSAMO, P.O. SEKOU BOURNE, P.O. MICHAEL CUSUMANO, DET. MARIN DURKIN, and P.O.s "JOHN DOE" #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

12. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

14. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

FACTS

15. On or about July 20, 2005, at approximately 7:00 a.m., plaintiffs were lawfully present inside the premises known as 1210 Loring Avenue, Apartment 4F, in the County of Kings, in the City and State of New York.

16. At the aforesaid time and place, defendant police officers broke down the door of plaintiffs' apartment.

17. Defendants then aggressively entered the apartment, terrorizing plaintiffs.

18. Defendants pointed their guns at plaintiffs' heads.

19. Defendants handcuffed plaintiffs and ransacked the apartment.

20. Defendants transported plaintiffs to the 75th Precinct of the New York City Police

Department, in Brooklyn, New York.

21. While plaintiffs were at the 75th Precinct, defendants continued to ransack the apartment and stole cash and items of personal property.

22. While at the 75th Precinct, plaintiffs were subjected to unlawful strip searches.

23. Plaintiffs were then transported to Brooklyn Central Booking.

24. Plaintiffs were released from Brooklyn Central Booking without having been arraigned.

25. Plaintiff REGINA KITCHING was held and detained in police custody for approximately sixteen hours.

26. Plaintiffs WILLIAM THOMPSON and DERRICK KITCHING were held and detained in police custody for approximately fifty-three hours.

27. As a result of the foregoing, plaintiffs sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, and humiliation, and deprivation of their constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

28. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs “1” through “27” with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants

in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

34. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “33” with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants, plaintiffs were subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiffs’ liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

37. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. Defendants issued legal process to place plaintiffs under arrest.

39. Defendants arrested plaintiffs in order to obtain a collateral objective outside the legitimate ends of the legal process.

40. Defendants acted with intent to do harm to plaintiffs without excuse or justification.

41. As a result of the foregoing, plaintiffs sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, and humiliation, and deprivation of their constitutional rights.

FOURTH CLAIM FOR RELIEF
UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

42. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “41” with the same force and effect as if fully set forth herein.

43. Defendants strip-searched plaintiffs in the absence of any individualized reasonable suspicion that plaintiffs were concealing weapons or contraband.

44. As a result of the foregoing, plaintiffs were subjected to illegal and improper strip-searches.

45. The foregoing unlawful strip-searches violated plaintiffs’ constitutional right to privacy, as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY

46. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “45” with the same force and effect as if fully set forth herein.

47. Defendants P.O. CHRISTOPHER WARD, LT. THOMAS FITZGERALD, CAPT. IGNATIUS LABARBERA, DET. JOSEPH KING, P.O. “JOHN” FRANCIS, P.O. STEVEN BALSAMO, P.O. SEKOU BOURNE, P.O. MICHAEL CUSUMANO, DET. MARIN DURKIN, and P.O. s “JOHN DOE” #1-10 arrested and incarcerated plaintiffs in the absence of any evidence of

criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiffs' liberty, well-being, safety and constitutional rights.

48. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) obtaining no-knock warrants by misrepresenting to judges the reliability of information received from confidential informants;
- b) unlawfully strip-searching pre-arraignment detainees in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband;
- c) arresting innocent persons in order to meet "productivity goals" (i.e., arrest quotas).

51. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated instances of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Edwin Lopera, et al. v. City of New York**, United States District Court, Eastern District of New York, 03 CV 6441;
- **Ramon Sanchez, et al. v. City of New York**, United States District Court, Southern District of New York, 03 Civ. 1732;

- **Jose Mateo, et al. v. City of New York**, United States District Court, Southern District of New York, 03 Civ. 1733;
- **Reginald McMillan v. City of New York**, United States District Court, Southern District of New York, 04 CV 3990;
- **Clifford Parker-Davidson v. City of New York**, United States District Court, Eastern District of New York, 04 CV 3242;
- **Rogers Jackson, Jr. v. City of New York**, United States District Court, Southern District of New York, 05 Civ. 0271.

52. The existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set “productivity goals.”

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

55. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

56. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiffs were falsely arrested and incarcerated.

57. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiffs.

58. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

59. The acts complained of deprived plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from malicious abuse of process;
- D. To be free from unlawful searches and seizures;
- E. Not to have summary punishment imposed upon them; and
- F. To receive equal protection under the law.

60. As a result of the foregoing, plaintiffs are each entitled to compensatory damages in the sum of three million dollars (\$3,000,000.00) and are each further entitled to punitive damages against the individual defendants in the sum of three million dollars (\$3,000,000.00).

WHEREFORE, plaintiffs REGINA KITCHING, WILLIAM THOMPSON, and DERRICK KITCHING each demand judgment in the sum of three million dollars (\$3,000,000.00) in compensatory damages and three million dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
June 14, 2006

/S
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